THE STATE OF NEW HAMPSHIRE
SUPREME COURT

No. 2024-0396

State of New Hampshire
v.
Robert F. Allore

Interlocutory Appeal Pursuant to Rule 8 from the Rockingham County Superior Court

REPLY BRIEF FOR THE DEFENDANT

Christopher M. Johnson
Chief Appellate Defender
Appellate Defender Program
10 Ferry Street, Suite 202
Concord, NH 03301
NH Bar # 15149
603-224-1236

(15 minutes oral argument)

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I. AS A MATTER OF STATUTORY INTERPRETATION, EVIDENCE OF CONSENT IS ADMISSIBLE IN A CASE CHARGING A CRIME UNDER RSA 632-A:2, I(G)(1).

Allore's opening brief argued that the consent of an adult patient operates as a defense to a charge under RSA 632-A:2, I(g)(1). Among other points, the brief contended that consent would defeat the statutory element requiring proof that the defendant acted "in a manner or for purposes which are not professionally recognized as ethical or acceptable." RSA 632-A:2, I(g)(1). In the trial court, the prosecutor treated the professional-recognition element as raising a question of fact to be determined by the jury, insofar as the prosecutor retained a nurse to testify as an expert witness about the relevant standards of the nursing profession. The trial court agreed, denying the defense motion to exclude the testimony of that expert. A77-A83.[1]

On appeal, the State seems to regard the dispute about the content of the nursing profession's standards as raising a question of law. SB 22. The State argues that this Court, in cases involving the prosecution of a nurse, should look to the Nurse Practice Act (NPA) for the governing expression of professional standards. RSA 326-B. Two considerations defeat the State's argument.

First, RSA 632-A:2, I(g)(1), codifies an element defined by professional recognition. The NPA – a statute – expresses standards articulated by the government, not by the nursing profession. If the

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[1] Citations to the record are as follows: "DB" refers to Allore's opening brief; "SB" refers to the State's brief; "A" refers to the appendix filed with Allore's opening brief.

legislature meant to define the AFSA element by reference to the NPA, it would expressly have so stated. When the legislature intends an element of a crime or a defense to refer to the provisions of another statute, it makes that reference clear. See, e.g., RSA 159:3, I(a) (defining deadly weapon element by reference to RSA 625:11); RSA 570-A:2, II(k)(1) (referring to RSA 259:96); RSA 639-A:1, III (referring to RSA 161-F:43, VII). Indeed, in RSA 318-B, the legislature, defining a defense to a prosecution for possession of drugs, specifically referred to the NPA. RSA 318-B:2-b, I & RSA 318-B:1, I-b. The statute at issue here, RSA 632-A:2, I(g)(1), however, makes no mention of the NPA.

Second, further confirmation that the legislature did not intend the NPA to supply the definition of the AFSA element appears in the history of the two statutes. Allore's opening brief described the history of the AFSA provision. DB 34-37. The legislature enacted in its current form the AFSA provision's elemental language – "professionally recognized as ethical or acceptable" – in 1992. N.H. Laws 1992, ch. 254:6. The State hypothesizes that the legislature intended, in enacting that language, to leave to the NPA the task of defining the boundaries of acceptable and ethical sexual behavior in this treatment-provider context. In 1992, though, the NPA said nothing about sexual behavior.

Only in 1994 did the legislature first enact, in the NPA, anything specifically about sexual behavior. N.H. Laws 1994, ch. 376:2. Even then, the statute addressed only "sexual misconduct" perpetrated by "psychiatric/ mental health advanced registered nurse practitioners," a specialty not practiced by Allore. RSA 326-B:32, VI & VII (1994). Also, at that time, the

legislature did not determine what sexual behavior would constitute "misconduct." Rather, the statute directed the Nursing Board, together with the boards regulating medicine and psychology, to "adopt rules … for psychiatric/mental health advanced registered nurse practitioners relative to sexual misconduct and other inappropriate behavior subject to disciplinary action." RSA 326-B:32, VI (1994).

Not until 2005[2] did the legislature enact the language in the NPA on which the State now principally relies. SB 16, 20-22 (citing RSA 326-B:37, II(m)). The legislature cannot have intended, in 1992, the "professionally recognized" language it wrote into the AFSA statute to refer to an NPA provision that did not then exist and would not come into existence for thirteen years. For these reasons, this Court must reject the argument that the AFSA statute's "professionally recognized" language refers to the NPA, or any provision in the NPA.

CONCLUSION

WHEREFORE, Mr. Allore respectfully requests, on the authority of the first and third arguments in his opening brief, that this Court remand with instructions to allow him to present evidence of consent. He requests, on the authority of the second argument in his opening brief, that the Court dismiss the charges brought under RSA 632-A:2, I(g)(1).

Undersigned counsel requests fifteen minutes oral argument before a full panel.

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[2] N.H. Laws 2005, ch. 293:1.

This brief complies with the applicable word limitation and contains approximately 762 words.

DATED: April 4, 2025

Respectfully submitted,

/s/ Christopher M. Johnson
#15149
Chief Appellate Defender
Appellate Defender Program
10 Ferry Street, Suite 202
Concord, NH 03301

CERTIFICATE OF SERVICE

I hereby certify that a copy of this brief is being timely provided to Sam M. Gonyea, counsel for the State, through the electronic filing system's electronic service.

/s/ Christopher M. Johnson